

By-Laws

Wasatch Ice Hockey Officials Association, Inc.

Updated: (8/7/2024)

Article I: Name.

Section 1: Name. The name of this corporation shall be: the Wasatch Ice Hockey Officials Association, Inc. (WIHOA), a not-for-profit corporation of the State of Utah, as organized.

Section 2: Office. WIHOA may have offices at such places as the Board of Directors may from time to time determine.

Article II: Purposes.

Section 1: Purposes. The purposes for which WIHOA is organized include, but are not limited to, the following:

1. Further maintain the interests of the ice hockey officials in Utah.
2. Provide educational programs to advance the skills of local ice hockey officials.
3. Maintain high standards of ice hockey officiating.
4. Work with ice hockey administrators to provide qualified officials to officiate ice hockey.
5. Maintain and promote the welfare of ice hockey by:
 - a. Encouraging fair play and sportsmanship
 - b. Maintaining professional interactions with players, coaches, parents, and fans.
 - c. Promoting official recruiting and retention programs.

Article III: Membership.

Section 1: Membership. WIHOA shall be comprised of the following persons.

1. Active Members.

- a. Active members are comprised of individuals who are registered and in good standing with USA Hockey.
- b. Active members of WIHOA are in good standing with USA Hockey and, as an independent contractor, officiate ice hockey games.
- c. Active membership requires full compliance of current USA Hockey membership standards, adherence to the USA Hockey Code of Conduct, and adherence to the WIHOA Code of Conduct at all times.
- d. Active membership requires the official to be in good standing with the WIHOA Code of Conduct and have no outstanding suspensions, fines, or other administrative holds.

2. Affiliate Members.

- a. Affiliate members are comprised of individuals or business entities who are not active members, but have a special interest in the purposes of WIHOA, each being an independent contractor.

3. **Section 2: Qualified Membership.** WIHOA may accept individuals and/or groups of individuals for membership pursuant to criteria to be established by WIHOA and such applications for membership shall be accepted or rejected by a majority vote of the WIHOA Board of Directors.
4. **Section 3: Membership Resignation.** Any member may resign by filing a written resignation with the secretary, which resignation shall be presented to the WIHOA Board of Directors at the first board meeting after its receipt. Such a resignation shall not relieve the member so resigned of the obligations to pay any dues, fines, or any other charges previously accrued and unpaid prior to the receipt of the resignation.
5. **Section 4: Reinstatement.** Upon written request signed by a former member and filed with the secretary, the WIHOA Board of Directors may, by a majority vote of the WIHOA Board of Directors, reinstate such former member to membership upon such terms as the WIHOA Board of Directors may deem appropriate.

Article IV: Membership Screening

Section 1: Policy. It is the policy of WIHOA that no member will be scheduled to officiate unless they consent to and successfully pass a background screening as required by WIHOA, USA Hockey, the Utah Amateur Hockey Association (UAHA), or any other governing body for ice hockey. No individual may have unsupervised or uncontrolled access to minors without such screening. WIHOA will use the national screening process as defined by USA Hockey. A person may be disqualified and prohibited from WIHOA membership in accordance with UAHA and USA Hockey abuse and screening policies.

Section 2: Appeals. WIHOA shall follow USA Hockey guidelines for appeals of screening results. All appeals must be handled through the UAHA and USA Hockey screening committees.

Article V: Membership Meetings

Section 1: Meeting of Members. WIHOA shall hold a minimum of one general membership meeting during the fiscal year called by the WIHOA Board of Directors. Special meetings of the general membership may be called by the President of WIHOA at the request of a majority vote of the WIHOA Board of Directors. Such a request shall state the proposed purposes of the requested meeting.

Section 2: Notice of General Meeting. Written notice of a general membership meeting, stating a time, date, and place, shall be electronically mailed to each member of WIHOA and appear on the books of WIHOA no less than 14 days of such meeting taking place.

Section 3: Voting Members. The presence of a minimum of 10 active members constitutes a quorum at any general members meeting. A simple majority vote of such members where a quorum is present to make a decision, except where some other number is required by these by-laws or the law. No form of proxy voting is permitted unless prior approval of the WIHOA Board of Directors is obtained by a majority vote of the WIHOA Board of Directors.

Section 4. Meeting Attendance Requirements. Each active WIHOA member in good standing, shall be requested, but not required to attend WIHOA general meetings unless otherwise stated in these by-laws.

Section 5. Satellite Meetings. Members who reside more than 200 miles from Salt Lake City may participate in the annual meeting through designated satellite, video call-in locations.

1. Satellite meeting sites must be approved by a majority vote of the Board of Directors and announced at least 30 days in advance of the meeting.
2. Voting at satellite sites must take place in full view of the meeting screen. Votes shall be verified on-screen and must match the total number of attendees, which must also be verified on-screen.
3. Votes cast at satellite sites shall be duplicated and added to the official tally at the physical annual meeting.

Article VI: Board of Directors

Section 1: General Powers and Duties. The property, business, and affairs of WIHOA shall be managed by the WIHOA Board of Directors. The WIHOA Board of Directors may exercise all such powers of WIHOA that are not by law, articles of incorporation, or by these by-laws directed to be exercised by the WIHOA general membership.

Section 2: Composition. The WIHOA Board of Directors shall consist of eleven (11) active members in good standing of WIHOA (Table 1): the President, six (6) Vice-Presidents, and four (4) General Board members. One of the General Board members will be designated as the Women's Interest General Board member.

<u>Position</u>	<u>Region</u>	<u>Term</u>	<u>Group</u>
President	All	2 Years	Officers
Vice-President	Northern Utah	2 Years	
Vice-President	Weber/Davis	2 Years	
Vice-President	East Salt Lake	2 Years	
Vice-President	West Salt Lake	2 Years	
Vice-President	Utah County	2 Years	
Vice-President	Southern Utah	2 Years	
General Board Member	All	3 Years	General Board Members
General Board Member	All	3 Years	
General Board Member	All	3 Years	
General Board Member – Women's Interest		3 Years	

Table 1. Composition of the WIHOA Board of Directors

Section 3. Elected Members.

1. The elected **Officers** of WIHOA shall be:
 - a. The President and 6 Vice-Presidents.
 - b. Elected to two-year terms.

- c. Elected by the general membership at the annual meeting.
 - d. In office until the appropriate election for their position or until Their death, resignation, or removal.
 - e. Elected officers must reside within 100 miles of the territory they represent.
2. The elected **General Board Members** shall be:
- a. Elected to three-year terms.
 - b. Elected by the general membership at the annual meeting.
 - c. In office until the appropriate election for their position or until Their death, resignation, or removal.
 - d. Elected General Board members shall be active members of WIHOA.

Section 4: Qualifications. Only active members of WIHOA are eligible to be nominated, elected, and serve on the WIHOA Board of Directors. These members must be in good standing of the WIHOA Bylaws and the WIHOA Code of Conduct. “Good standing” is defined as full compliance of both of the documents mentioned.

Section 5: Nominations. Active members of WIHOA who are eligible and have been nominated to serve on the WIHOA Board of Directors must voluntarily choose to accept or decline such a nomination. If a member of WIHOA chooses to accept a nomination, they must be physically (or virtually) present at the election for the position in which they have been nominated. A vote shall not be taken for an individual who is not physically (or virtually) present.

Section 6. President. The President, who is a voting member of the WIHOA Board of Directors, shall be the chief executive officer of WIHOA, and shall be responsible for all management functions. They shall have executive authority to see that all orders and resolutions of the WIHOA Board of Directors are carried into effect and, subject to the control vested in the president by the WIHOA Board of Directors, shall administer and be responsible for the overall management of the business affairs of WIHOA. Such duties include but are not limited to:

- 1. Oversee all general and annual WIHOA association meetings.
- 2. Conduct monthly meetings of the WIHOA Board of Directors.
- 3. Assure that WIHOA has representation at the UAHA, Utah High School Hockey, and other hockey association meetings in which WIHOA has interest.
- 4. Acts as a liaison for WIHOA, or delegates as necessary the responsibility of liaison to appropriate associations related to ice hockey in Utah.
- 5. Negotiate pay rates via the WIHOA Board of Directors.
- 6. Keep the issues discussed at monthly WIHOA Board of Directors meetings, or any other meetings (e.g., disciplinary), confidential.
- 7. Maintain WIHOA’s best interest through professional communication and a leadership stance during all communication with the general membership of WIHOA (e.g., email, social media, text messages, and phone calls). That is, do not participate in rumor mongering, gossip, or any other negative social communication that goes against the best interest of WIHOA.

Section 7: Vice-Presidents. There shall be six (6) Vice-Presidents, who are voting members of the WIHOA Board of Directors, who shall be responsible for:

1. Maintain residency within 100 miles of their elected territory.
2. Assisting the WIHOA President in Their duties.
3. Attending general and annual WIHOA association meetings.
4. Attending and voting on issues at the monthly meetings of the WIHOA Board of Directors.
5. Attend local associations' disciplinary hearings within their elected territory or elsewhere when directed to do so by the President of WIHOA.
6. Be active participants in the meetings of the WIHOA Board of Directors.
7. Support and monitor officiating operations and scheduling within their elected territory.
8. Serve as liaisons to the rinks within their elected territory, including posting seminar information, addressing team/league/affiliate questions, and coordinating with schedulers.
9. Volunteer for and accept assignments to be completed thoroughly and on time.
10. Keep the issues discussed at monthly WIHOA Board of Directors meetings, or any other meetings (e.g., disciplinary), confidential.
11. Maintain WIHOA's best interest through professional communication and a leadership stance during all communication with the general membership of WIHOA (e.g., email, social media, text messages, and phone calls). That is, do not participate in rumor mongering, gossip, or any other negative social communication that goes against the best interest of WIHOA.

Section 8: General Board Members. There shall be four (4) general board members, who are voting members of the WIHOA Board of Directors, who shall be responsible for:

1. Attending general and annual WIHOA association meetings.
2. Attending and voting on issues at the monthly meetings of the WIHOA Board of Directors.
3. Provide opinions on issues at the monthly meetings of the WIHOA Board of Directors.
4. Support the Officers of WIHOA when necessary
5. Volunteer for and accept assignments to be completed thoroughly and on time.
6. Stay informed on association matters and prepare for meetings.
7. Keep the issues discussed at monthly WIHOA Board of Directors meetings, or any other meetings (e.g., disciplinary), confidential.
8. Maintain WIHOA's best interest through professional communication and a leadership stance during all communication with the general membership of WIHOA (e.g., email, social media, text messages, and phone calls). That is, do not participate in rumor mongering, gossip, or any other negative social communication that goes against the best interest of WIHOA.
9. One seat shall be designated as the Women's Interest General Board Member, responsible for representing female officials, advising on equity and inclusion, and coordinating mentorship and recruitment of women in officiating.

Section 9: Annual Role Assignments. In addition to their elected offices, each member of the WIHOA Board of Directors shall be assigned an operational role for the governance year. These roles exist to ensure that the business of WIHOA is managed effectively and that responsibilities are shared equitably among Board members. Operational roles shall be determined and assigned at the first Board meeting following the annual meeting. Once assigned, a role shall remain in effect for the full governance year, unless reassignment is approved by a majority vote of the Board due to vacancy, incapacity, or other substantial need. Roles will be selected from a living document maintained by the Board of Directors titled “Operational Roles of the Board.” This document shall contain detailed definitions of each role, associated duties, and applicable resources, and it may be updated as needed by majority vote of the Board. Each Board member is expected to fully accept ownership of their assigned role, to carry out its responsibilities diligently, and to provide regular updates at monthly Board meetings. Additional reports shall be provided to the President or Board as requested.

Section 10: Executive Secretary. The executive secretary must be an active member of WIHOA. This position is appointed by the WIHOA Board of Directors and will not have voting powers unless they are concurrently occupying a Board seat. If occupying a Board seat, they retain full voting rights. The Executive Secretary will:

1. Keep the minutes of the monthly meetings of the WIHOA Board of Directors.
2. See that notices are duly given in accordance of these by-laws or as required by law.
3. Be the custodian of the records of WIHOA.
4. Have charge of membership records and update membership information within WIHOA.
5. Send minutes to the WIHOA Board of Directors for approval.
6. In general, perform all duties inherent to the office of the secretary or as requested by the WIHOA Board of Directors.
7. Keep the issues discussed at monthly WIHOA Board of Directors meetings, or any other meetings (e.g., disciplinary), confidential.
8. Maintain WIHOA’s best interest through professional communication and a leadership stance during all communication with the general membership of WIHOA (e.g., email, social media, text messages, and phone calls). That is, do not participate in rumor mongering, gossip, or any other negative social communication that goes against the best interest of WIHOA.

Section 11: Treasurer. The Treasurer must be external to the Board but may or may not be an active WIHOA member or an affiliate of WIHOA. The treasurer is appointed by the WIHOA Board of Directors and will not have voting powers. The treasurer may be compensated for time and such compensation will be set by a majority vote of the WIHOA board of directors. The treasurer will:

1. Receive and be responsible for all funds of and securities owned or held by WIHOA.
2. Keep full and accurate records and accounts for WIHOA.
3. Bill all organizations for WIHOA officiated games.
4. Deposit to the credit of WIHOA all money, funds, and securities so received in such band or other depository as the WIHOA Board of Directors may from time to time establish.

5. Disburse or supervise the disbursements of the funds of WIHOA as authorized by the officers of WIHOA.
6. Provide an account of WIHOA's financial status to the Officers of WIHOA for discussion at regularly scheduled meetings of the WIHOA Board of Directors.
7. Produce monthly financial and other appropriate records for review by the Officers of WIHOA.
8. In general, perform all duties inherent to the office of the treasurer or as requested by the WIHOA Board of Directors.
9. Keep the issues discussed at monthly WIHOA Board of Directors meetings, or any other meetings (e.g., disciplinary), confidential.
10. Maintain WIHOA's best interest through professional communication and a leadership stance during all communication with the general membership of WIHOA (e.g., email, social media, text messages, and phone calls). That is, do not participate in rumor mongering, gossip, or any other negative social communication that goes against the best interest of WIHOA.

Section 12: Scheduling Coordinator / Schedulers. The scheduling coordinator and scheduler(s) is (are) appointed by the WIHOA Board of Directors and may be an active or affiliate member(s) of WIHOA. The scheduling coordinator and schedulers may be compensated for time and such compensation will be set by a majority vote of the WIHOA board of directors. The scheduling coordinator and scheduler(s) will not have voting powers unless they are active members of the Board. They must adhere to the scheduling structure established by the Board of Directors. The scheduling coordinator and scheduler(s) will:

1. Upload and schedule games within a timely manner according to the WIHOA Scheduling Structure
2. Schedule active members of WIHOA for games appropriate for the age and skill of the member.
3. Only assign active members of WIHOA to officiate contests between USA Hockey sanctioned teams and board approved teams/leagues/associations.
4. Report to the President of WIHOA any issues with game requests or cancellations.
5. Report to the President of WIHOA any issues that arise within the current scheduling platform.
6. Report to the President of WIHOA of any problems with assignments in written form.
7. Report to the President of WIHOA missed/late assignments.
8. Report to the President of WIHOA of any issues related to game assignments or the WIHOA members assigned to work them.
9. Adhere to the scheduling structure established by the Board of Directors.

Section 13: Ex-Officio Member: The USA Hockey State Referee-In-Chief (RIC) shall not be an elected member of the WIHOA Board of Directors, but shall be an ex-officio member of the WIHOA Board of Directors without voting rights. Their duties shall include:

1. Coordination and scheduling of the USA Hockey officiating seminars in the state of Utah.

2. Supervision of, and/or holding meetings as a necessary in the interest of uniformity and strict interpretation of the rules, mechanics, and techniques of good officiating before and during the season as a means of educating officials, coaches, players, and other invested parties.
3. Coordinating or delegating the coordination of responsibilities of training, evaluation, seminars, disciplinary matters, or other committees when such events fall outside of the WIHOA Board of Directors purview.

Section 14: Nominations. The active members of WIHOA shall be notified of upcoming elections at least 30 days prior to the annual meeting with a notice of the available seats for nominations. Nominations for each seat that is vacant or about to expire may be received up until seven days of the election. The nominee will be informed and asked to accept or forfeit the nomination prior to the election. The general membership of WIHOA will be notified of the nominated members who have accepted their nominations seven days in advance of the annual meeting where elections are to take place. In the event that a current board member is elected to a separate position at the Annual Meeting, nominations for the newly vacated position will take place at the meeting from those WIHOA members that are present.

Section 15: Removal of a Member of the WIHOA Board of Directors. Any WIHOA Board of Directors Member may be removed by a majority vote of the active members of the WIHOA Board of Directors and the concurrence of a three-member Board Removal Committee, but still active members of WIHOA in good standing.

Section 16: Resignations. Any member of the WIHOA Board of Directors may resign at any time by giving written notice to the President or Officers of WIHOA. Such a resignation shall take effect at the time specified therein. Unless otherwise specified therein, the acceptance of such resignation shall not be necessary to make it effective.

Section 17: Vacancies. Any vacancy occurring in the WIHOA Board of Directors shall be filled by a majority vote of the WIHOA Board of Directors at a regularly scheduled, or special session of, the monthly meeting of the WIHOA Board of Directors. Such an appointed member of the WIHOA Board of Directors shall hold office until the next election for members of the WIHOA Board of Directors. That is, the appointed member will fill the unexpired term of Their predecessor. If a vacancy occurs during the annual meeting due to a Board member being elected to another office, nominations for the vacated seat will be taken immediately from the floor. Nominees must be present and accept nomination. After brief remarks, voting will occur on the spot. The 30-day nomination rule is waived in this circumstance.

Section 18: Regular WIHOA Board of Directors Meetings. A regular meeting of the WIHOA Board of Directors shall be held monthly. The date and time will be agreed upon by a majority vote of the WIHOA Board of Directors. A written notice will be electronically mailed by the President to each member of the WIHOA Board of Directors of the meeting time and place. The President may cancel this meeting as necessary and notice will be sent of such cancelations to the WIHOA Board of Directors.

Section 19: Special WIHOA Board of Directors Meetings. Special meetings of the WIHOA Board of Directors may be held at any time at the call of the President or at the request, in writing, of a majority of the WIHOA Board of Directors. Special meetings may be held at such a time and place as may be designated in the call for such a meeting. Notice of special meetings shall be electronically mailed or otherwise communicated to each of the WIHOA Board of Directors within 48 hours of any incident requiring a special meeting and the meeting must occur within seven (7) days of that notice.

Section 20: Quorum. Fifty percent (50%) of the total number of the WIHOA Board of Directors shall constitute a quorum for the transaction of business at any meeting of the WIHOA Board of Directors.

Section 21: Informal Action. Any action required to be taken at the WIHOA Board of Directors may be taken without a meeting if consent in writing setting forth the actions so taken shall be agreed to by all the WIHOA Board of Directors and communicated to the Executive Secretary.

Section 22: Re-Election. No member of the WIHOA Board of Directors who has served two consecutive terms shall be eligible for re-election for that same office until at least one year shall have elapsed. Any member of the WIHOA Board of Directors who has filled a vacated term shall be eligible to serve two consecutive terms in addition to the unexpired, vacated term.

Section 23: Balloting. Balloting shall be conducted by secret ballot, and only members in good standing are eligible to vote. In the event of a tie vote, a runoff election shall be held immediately between the tied candidates to determine the winner. All ballots shall be publicly counted at the meeting, including those cast at approved satellite locations, in order to ensure transparency and fairness in the election process. No proxy balloting may take place unless unanimously voted on by the WIHOA Board of Directors.

Section 24: Transition of the Presidency. Following the annual meeting, the outgoing President shall serve as a consultant during the months of July and August to ensure a smooth transition of leadership. During this transitional period, the outgoing President shall attend Board meetings and meet separately with the incoming President to ensure that all necessary processes, documentation, and institutional knowledge are effectively transferred.

Section 25: Good Standing. An active member in good standing is one who has complied fully with all WIHOA bylaws and the WIHOA Code of Conduct, completed all USA Hockey requirements, and has no unpaid fines, penalties, or suspensions.

Section 26: Compensation of the WIHOA Board of Directors. Members of the WIHOA Board of Directors shall not receive any direct compensation from WIHOA for their services. However, WIHOA Board of Directors may receive a stipend or reimbursement to recoup costs associated with WIHOA business. These include, but are not limited to:

1. Cell phone costs (Only for the president and schedulers)
2. Office material costs (e.g., paper, pens, etc.)
3. Contract negotiation costs (i.e., production of contracts)
4. Costs related to the production of WIHOA membership gear

5. Seminar costs (e.g., food and drink)
6. Annual meeting costs (e.g., food and awards)
7. Party costs (e.g., venue rentals)
8. WIHOA Development Camp costs (e.g., instructors, ice-time, etc.)
9. Other costs that are directly to the benefit of WIHOA and its membership that are supported by documentation and approval by the WIHOA Board of Directors.

Article VII: Special Committees

Section 1: Judicial Committee. The RIC shall appoint a committee of three officials in good standing. The three will elect a chairman and report to the WIHOA Board of Directors. This committee shall hear and decide all charges brought against any member. This committee is to be deployed for permanent removal of an official from WIHOA. This committee will be reformed and dissolved as necessary.

Section 2: Disciplinary Committee. The President shall appoint a committee of five officials in good standing. These appointed members of the disciplinary hearing shall include (1) the RIC, (2) the President, (3) three members of the WIHOA Board of Directors. This committee is to be deployed for suspensions longer than ten (10) days and other discipline as set forth in these by-laws. This committee will be reformed and dissolved as necessary.

Section 3: Board Removal Committee. The Board Removal Committee shall exist for the sole purpose of reviewing and concurring in any decision to remove a member of the WIHOA Board of Directors. This committee shall be composed of three (3) WIHOA officials not serving on the Board of Directors. Removal of a Board member requires both a majority vote of the Board of Directors and concurrence by this committee.

Article VIII: Books and Records

Section 1: Location. The books, accounts, and records of WIHOA may be kept at such a place or places as the WIHOA Board of Directors may from time to time determine.

Section 2: Inspection. The books, accounts, and records of WIHOA shall be open to the inspection by any active member of the WIHOA Board of Directors at all times, and open to inspection by the active WIHOA membership at written request.

Article IX: Discipline of Members

Section 1: Grounds for Discipline. For failure to comply with these by-laws, established authority, regulations of WIHOA as set forth in the WIHOA code of conduct, or conduct detrimental to or contrary to the best interests of WIHOA, a member of WIHOA may be fined, placed on probation, or suspended from WIHOA for not more than one calendar year or expelled permanently.

Section 2: Suspension Pending Hearing. The Board of Directors may suspend a member immediately pending investigation and hearing if overwhelming evidence indicates misconduct. Evidence may include, but is not limited to:

- Physical or digital evidence such as video or photographs; or

- Multiple consistent eyewitness accounts from officiating partners, scorekeepers, or others with firsthand knowledge.

Suspension pending investigation shall be reserved for circumstances where the available evidence is compelling and immediate action is necessary to protect the integrity of WIHOA.

Section 3: Notification of Charges. A member shall receive written notice by electronic mail of the accusations against him/her, indicating the alleged violation with specific references to the by-law provision, rule, policy, or regulation They allegedly violated. Such notification shall include the alleged conduct in violation, when and where the alleged conduct occurred, and the person(s) or entity who filed the charge. Such member shall also be provided, at that time, with copies of all documents related to the charges which may be used in prosecution of the charged and the documents which reference the violated policies (e.g., by-laws, code of conduct, etc.)

Section 4: Right of Hearing. A member charged with any violation (automatic or otherwise) shall have the right to be heard in person or via a written statement made by the charged in their own defense before the special committee set forth in these by-laws. Such a right shall be afforded prior to the imposition of any fine, penalty, or any other disciplinary action. A member may seek a personal hearing if requested by that member within seven days of the written notification. At the hearing, the person or entity making the charge shall be present or provide a written statement of the charges alleged. Both sides may present any information or documents at the hearing. Each party may ask questions of the other. Legal counsel may be present and fully participate in the proceedings. The hearing will have recorded minutes and all documents will be retained. A written decision shall be made and sent to both parties by electronic mail within seven days of the hearing date. A majority vote of the members of the special committee shall determine its decision. The special committee shall, as its option, use any of the following procedures to make its determination:

1. Hold a preliminary fact-finding meeting involving two or more of the special committee members.
2. Use electronic mail, conference calls, or video conference calls as proceedings involving the full committee to render either preliminary and final determinations of grievance.

Section 5: Appeal. Any member suspended by a special committee in accordance of these by-laws has the right to appeal to the WIHOA Board of Directors by giving the president written notice within seven days of the receipt of the committees' decision. Any further written arguments shall be submitted to the WIHOA Board of Directors no later than seven days after the appeal has been requested. The WIHOA Board of Directors shall decide the appeal on the record before the special committee (including all documentation) within 40 days after the date of appeal. A majority vote of the WIHOA Board of Directors shall decide the outcome of the appeal.

Section 6: Recourse. Any recourse to the courts of any jurisdiction by any member or individual before all of the rights and remedies available under the articles and by-laws of WIHOA have been exhausted, shall be deemed conduct detrimental to the best interest of hockey and therefore grounds for suspension or expulsion.

Article X: Disciplinary Schedule

Section 1: Suspensions and Fines. The WIHOA Board of Directors are provided with wide latitude to levy suspensions and fines against the members of WIHOA for a variety of infractions. Such infractions may be those that are against the WIHOA Code of Conduct, Independent Contractor Agreement, or other infractions against WIHOA policies that have been enacted by the WIHOA Board of Directors.

Section 2: Automatic Suspensions and Fines: Those suspensions and fines that are not subject to the special committees set forth in these bylaws are subject to the WIHOA Automatic Suspension and Fine Schedule. All automatic suspensions and fines must be approved by the WIHOA Board of Directors via a majority vote. Such a vote is not required to take place at a monthly or special meeting. In lieu of such a meeting, a vote may take place via electronic mail with the votes (for and against) and documentation being added to the following months minutes for the WIHOA Board of Directors meeting.

The below automatic discipline schedule has been approved by the WIHOA Board of Directors.

Infraction	First Offense	Second Offense	Repeated Offenses
No Call, No Show	Game fee fine + written warning	10-day suspension + game fees	Indefinite suspension pending disciplinary committee review and hearing
Social Media/Communication Violation	Written warning	Up to a 10-day suspension	Indefinite suspension pending disciplinary committee review and hearing
WIHOA Code of Conduct Violation	Written warning	Up to a 10-day suspension	Indefinite suspension pending disciplinary committee review and hearing
Match Penalty While Playing or Coaching	Indefinite suspension pending WIHOA and league hearing	Indefinite suspension pending WIHOA and league hearing	Indefinite suspension pending judiciary committee review and hearing

Article XI: WIHOA Insurance Policies

Section 1: Associations Insurance. Amateur hockey associations are expected to be insured by a governing body (e.g., USA Hockey) that provides their players, off-ice officials, and on-ice officials with secondary health insurance in the event of accidental injury or death.

Section 2: Uninsured Associations. From time to time, Amateur hockey associations may choose to end their membership of a given governing body (e.g., USA Hockey). In the event that an association chooses to go uninsured against accidental injury or death, WIHOA will carry an insurance policy that covers its members with at least secondary insurance in the event of accidental injury or death while officiating games for associations that have chosen to provide uninsured games of ice hockey. Such associations exercising this option will be subject to an additional fee (per game) to cover the cost of this insurance coverage for WIHOA members.

Section 3: Roster of Covered Officials. WIHOA will maintain an up-to-date and accurate roster of its members who are eligible for coverage under the WIHOA insurance policy. Such officials are expected to sign the WIHOA Insurance Waiver as provided to them.

Article XII: Miscellaneous Provisions

Section 1: Fiscal Year. The fiscal year of WIHOA shall end on the last day of August in each year.

Section 2: Depositories. The WIHOA Board of Directors and the treasurer shall appoint banks, trust companies, or other depositories in which shall be deposited money or securities of WIHOA.

Section 3: Checks, Drafts, and Notes. All checks, drafts, or other orders for the payment of money and all notes or other evidences of indebtedness issued in the name of WIHOA shall be assigned by such officer(s) or agent(s) as shall be designated by resolution of the WIHOA Board of Directors or by an officer appointed by the WIHOA Board of Directors.

Section 4: Contracts and Other Instruments. Except as otherwise provided in these by-laws, the WIHOA Board of Directors may authorize any officer, agent, or agents to enter into contract, or execute and deliver any instrument in the name and on behalf of WIHOA and such authority may be general or confined to specific instances.

Section 5: Gifts. The WIHOA Board of Directors may accept on behalf of WIHOA any contribution, gift, or bequest, or device as deemed fit for the stated general purposes or for any purpose of WIHOA. The WIHOA Board of Directors may from designate gifts for the general members as annual thanks, recognition for efforts and achievements, or any other purpose receiving a majority vote by the WIHOA Board of Directors.

Section 6: Status of Members. All the members of WIHOA are independent contractors in their officiating capacities and not employees of WIHOA. All members of WIHOA recognize this status and understand that WIHOA are not their employers and therefore the members of WIHOA may not collect workers compensation from WIHOA while officiating or acting on behalf of WIHOA.

Section 7: Legal Counsel. The selection of legal counsel to be used by WIHOA will be determined by a majority vote of the WIHOA Board of Directors.

Section 8: Amendments. These by-laws may be amended or repealed by a majority vote of the active members of the WIHOA Board of directors. Notice of such proposed changes will be

electronically mailed to the active members of the WIHOA Board of Directors. Amendments may be proposed by the WIHOA Board of directors, or upon written petition of the active members of WIHOA and delivered to the WIHOA Board of Directors. The adoption of new by-laws or amendments to current by-laws by the WIHOA Board of Directors must be electronically mailed to the active membership within 14 days of the change.

Section 9: Approved Associations. The WIHOA Board of Directors shall approve all contracts made with associations who are USA Hockey registered or have petition for individual consideration to the WIHOA Board of Directors.

Section 10: Rules of Procedure. An appointed officer of the WIHOA Board of Directors shall act as parliamentarian and ensure that all acts are in compliance of these by-laws.

Section 11: Social Media and Communication. WIHOA members are expected to uphold a professional demeanor in all communications related to and about WIHOA. This includes social media platforms, forums, podcasts, interviews, broadcasts, and other media appearances. Members must ensure that their posts, comments, and messages reflect the values and standards of WIHOA, avoiding any content that could be deemed offensive, discriminatory, or inflammatory. Confidential or proprietary information about WIHOA, including internal communications and unpublished schedules, must not be shared. When discussing WIHOA-related matters, members should clarify that their opinions are personal and not representative of the organization unless explicitly authorized. Additionally, members should avoid any behavior that could present a conflict of interest or harm the reputation of WIHOA. By adhering to these guidelines, members contribute to maintaining the integrity and positive image of WIHOA. Opinions expressed in public forums must be identified as personal unless explicitly authorized to represent WIHOA.

Section 12: Credit and Debit Card Use. WIHOA credit or debit cards shall not be used without prior approval of the full Board of Directors. All card use must be for legitimate WIHOA purposes only, with supporting documentation retained for financial records.

Section 13: Indemnification. WIHOA shall indemnify its Board of Directors, officers, and committee members against reasonable expenses, judgments, fines, and settlements incurred in connection with actions taken in good faith on behalf of WIHOA. Indemnification shall not apply in cases of gross negligence, fraud, or willful misconduct.

Section 14: Budgeting and Compensation. The Board of Directors shall adopt an annual budget at the second meeting following the annual meeting. Budgets shall be reviewed on a quarterly basis and updated as necessary. Compensation for appointed positions (including but not limited to the Treasurer, tax preparers, and administrative contractors) shall be reviewed at the same time as contracts and approved by majority vote of the Board.

Certification

The foregoing by-laws of the Wasatch Ice Hockey Officials Association, Inc., are hereby adopted and approved as of the date below written, and shall be written immediately as provided herein.

Approved by an affirmative vote of the WIHOA Board of Directors on this day __21__ of __September__ in __2025__.

Signed by the President of WIHOA:

 Andy VanWagoner

Witnessed by at least one Vice-President of WIHOA:

 Matthew Orr